NATIONAL COMPANY LAW APPELLATE TRIBUNAL,
PRINCIPAL BENCH, NEW DELHI

Company Appeal (AT) (Ins) No. 908 of 2021

IN THE MATTER OF:

Sanjay Rajkumar Chhabriaa **....Appellant**

Vs.

Moon Star Securities Trading & Finance Co. Ltd. & Anr. **...Respondents**

Present:

For Appellant: **Mr. Zain Khan, Advocate.**

For Respondents: **Ms. Ranjana Roy Gawai, Ms. Vasudha Sen, Advocates for R-1.**
Ms. Aastha Mehta and Mr. Aalok Jain, Advocates for R-2.
Mr. Rajeev M Roy, Advocate
Mr. Arun Kathpalia, Sr. Advocate with Ms. Ruchi Kohli and Ms. Srishti Mishra, Advocates (Impleador for Bank of Baroda)

ORDER
(Through Virtual Mode)

24.11.2021: It is brought to the fore that there is no settlement on the cards/anvil between the parties. At this juncture, this Tribunal has heard the Learned Counsel for the Appellant.

Let notice be issued to Respondents through Speed Post. Requisites together with Process Fee be filed within three days from today before the Office of the Registry. The Appellant is also to provide the Mobile Number as well as e-mail address of the Respondent before the Office of the Registry and in such an event, the Notice may also be served in that mode also.

Before the next date of hearing, it is open to the Respondent side to file Reply/Response/Counter before the Office of the Registry not only through e-filing but also through hard copy and the copy of the same shall be exchanged between them. Also the 'Notes of Submissions' of either parties are to be submitted/filed by the Learned Counsels appearing for the parties and the copy may be exchanged.

There shall not be any deference of COC meeting as ordered earlier by this Tribunal on 15.11.2021 and the matter can be proceeded further, in the manner known to law and in accordance with law.

The 'Office of the Registry' is directed to list the matter on **12th January, 2022**.

[Justice M. Venugopal]
Member (Judicial)

[V.P. Singh]
Member (Technical)

[Dr. Ashok Kumar Mishra]
Member (Technical)

sr/gc